

Radhe Shyam Bansal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 November 2021 · WRIT - C No. 30032 of 2021 · **Writ petition dismissed; mandamus for new connection refused.**

HEADNOTE

The Allahabad High Court dismissed a writ seeking mandamus for a new electricity connection where a prior connection in the same premises had been disconnected with outstanding dues of Rs. 49,359. Applying Clause 4.3 of the U.P. Electricity Supply Code, 2005, the Division Bench held that a new connection cannot be provided while such dues remain unpaid, and that the petitioner's unexplained claim of residence did not make the case fit for mandamus.

FACTUAL SUMMARY

Radhe Shyam Bansal sought a writ mandamus for a new electricity connection to a house. After a short adjournment for instructions, the licensee stated that a prior connection in the name of Dharmendra Raghav, son of Jaspal Raghav, had been disconnected on 26 August 2021 with outstanding dues of Rs. 49,359, and that a fresh connection could not be given until those dues were cleared. The petitioner claimed to be a permanent resident of the house but did not state how or when he came into possession.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection barred by outstanding premises dues

HOLDING

Clause 4.3 of the U.P. Electricity Supply Code, 2005 provides that a new connection cannot be given where electricity dues remain outstanding on the premises. Mandamus will not issue to compel a fresh connection in that situation; an unexplained claim of residence does not make the case fit for a writ. ¶ 1

PRINCIPLE TAGS

clause-4.3-new-connection-barred-by-outstanding-premises-dues

The Court treated outstanding dues of Rs. 49,359 on a prior disconnected connection as a Clause 4.3 bar to mandamus for a new connection in the same premises, and dismissed the writ. ¶ 1